

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 16, 2026, AT 8:30 A.M.

Defendant's motion to strike is denied as moot in light of the court sustaining the demurrer with leave to amend.

Plaintiffs shall file and serve an amended complaint on or before **July 27, 2026**.

5. S-CV-0056742 LANE, DAVID v. MITCHELL, CHRISTIE

Plaintiff's Motion to Disqualify Opposing Counsel, Attorney Paul Cass

Preliminary Matters

Plaintiff's request for judicial notice is granted.

Ruling on Motion

Plaintiff moves to disqualify defendant's opposing counsel, Paul Cass, on five independent grounds.

First, plaintiff argues Paul Cass previously represented plaintiff and now represents defendant who has adverse interests to plaintiff in direct violation of Rules of Professional Conduct, Rule 1.9.

Rules of Professional Conduct, Rule 1.9 provides "A lawyer who has formerly represented a client in a matter shall not thereafter represent another person in the same or a substantially related matter in which that person's interests are materially adverse to the interests of the former client unless the former client gives informed written consent." (Rules of Prof. Conduct, rule 1.9, subd. (a).) In other words, "an attorney will be disqualified only when there is "a 'substantial relationship' between the subjects of the prior and current representations." (*Victaulic Company v. American Home Assurance Company* (2022) 80 Cal.App.5th 485, 506.)

The substantial relationship test involves two questions: First, whether the attorney's relationship with the former client was direct and personal; if so, the court then determines "whether there is a connection between the two successive representations." (*Id.* at 506–07.) As to the latter question, "current and former matters are deemed substantially related only if they involve a substantial risk of a violation of a duty owed the former client." (*Id.* at 511–12.) Importantly, "[t]he presumption that former counsel possesses confidential information is triggered only if there is a substantial risk that confidential information would be used in the current representation, which occurs where it is reasonable to conclude that the information

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would *materially* advance the [present] client's position.” (*Id.*, at 512 [internal quotation marks omitted].)

Both parties concede attorney Paul Cass formerly represented plaintiff in October and November 2023 and now represents defendant in an adverse proceeding to plaintiff.

The court, however, cannot find the former representation and current representation are substantially related. Paul Cass’s former representation of plaintiff involved two one-hour in-person discussions regarding issues with plaintiff’s mother and wife’s trust. (Cass Dec’l, ¶ 5.) Also, Paul Cass declares he did not discuss plaintiff’s financials or Megan Paterson or defendant in the two meetings with plaintiff. (*Ibid.*) Paul Cass’s current representation of defendant involves defendant’s alleged publication of plaintiff’s attorney-client communications that he had with defendant during their former attorney-client relationship. (*See generally* First Amended Complaint.) These matters are not substantially related. Nor does the presumption that Paul Cass possesses confidential information triggered because any information about plaintiff’s mother’s and wife’s trust would not materially advance defendant’s position.

Second, plaintiff argues that Paul Cass is representing Megan Patterson, the petitioner in a domestic violence restraining order action where plaintiff is the respondent, and simultaneously representing defendant in this action. However, this situation is not a simultaneous or dual representation. (*See Flatt v. Superior Court* (1994) 9 Cal.4th 275, 284–86.)

Third, plaintiff avers Paul Cass received and used privileged information between plaintiff and defendant. The alleged privileged information is an email authored by plaintiff and sent to defendant that “reminds” defendant the parties had an attorney-client relationship, that one of defendant’s long-time clients filed a domestic violence restraining order against him, the long-time client’s attorney is being removed for a conflict of interest, and that defendant cannot provide the long-time client legal advice. (RJN, Ex. A.) However, this email is not a confidential communication between a client and lawyer. (Evid. Code, § 952.)

Fourth, plaintiff argues that his pending appeal of the trial court’s ruling denying his motion to disqualify Paul Cass in another action filed in Placer County Superior Court heightens the integrity risk and threatens his rights in both actions. He cites *People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135 and *Jessen v. Hartford Casualty Ins. Co.* (2003) 111 Cal.App.4th 698

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for the proposition that this independently warrants Paul Cass's disqualification. Neither legal authority cited stands for this proposition.

Fifth, plaintiff argues that Paul Cass is a necessary and material witness to this action and his testimony goes to the heart of the disputed issues. Specifically, plaintiff contends "opposing counsel is not a peripheral observer but a central actor in the events at issue, he personally received, reviewed, and used the privileged communications that form part of the basis of this disqualification motion. Only defense counsel can testify to when, how, and under what circumstances he obtained and deployed those communications, and such testimony is unavailable from any other witness." (Plaintiff's Motion to Disqualify, p. 12.) However, the test is whether Paul Cass would have to testify at trial, not at the motion to disqualify hearing. (*Smith, Smith & Kring v. Superior Court (Oliver)* (1997) 60 Cal.App.4th 573, 578.) The court finds Paul Cass is not a necessary and material witness to trial because his testimony is not genuinely needed.

Accordingly, plaintiff's motion is denied.